



29 June 2026

Law Enforcement

South African Police Service (SAPS)

Traffic Police

Immigration Inspectorate

Health Services

Defence Force

**Re: Definitive Legal Status and Absolute Protection of an Asylum Seeker, Ms Mercy Hasweld Phungu,
Pending Finalisation of her Application for Asylum**

Applicant: Ms Mercy Hasweld Phungu

Date of Birth: 24/11/1985

Dear Sir/Madam,

1. INTRODUCTION

This letter serves to confirm the legal status of the above-named individual, Ms Mercy Hasweld Phungu, who has formally applied for asylum in the Republic of South Africa. Its purpose is to provide law enforcement and other state officials with a definitive and detailed statement of her rights and protections under the

Constitution, the Refugees Act 130 of 1998, and a substantial, cohesive body of binding judicial precedent from the Constitutional Court, Supreme Court of Appeal, and High Court.

Ms Mercy Hasweld Phungu is lawfully present in the Republic pending the final determination of her asylum application. Any attempt to arrest, detain, or deport him would constitute a direct violation of established statutory law and explicit court orders.

2. FACTUAL AND PROCEDURAL BACKGROUND

Due to the COVID-19 pandemic, the Department of Home Affairs (DHA) suspended in-person asylum applications at Refugee Reception Offices (RROs) from 16 March 2020. With effect from 2 May 2022, the DHA instituted a mandatory online system for new applicants.

A further compounding factor was when the new amended Refugees Amendment Act 33 of 2008 Act was published on 12 December 2019 it was met with many legal challenges due to its poor construction in law and in particular new asylum and abandoned asylum provisions culminating in many judgements and clarifications in law outlined below .

Ms Mercy Hasweld Phungu has complied with this official procedure by submitting her application via the prescribed online channel and is in possession of confirmation that her application was received by the DHA.

This process has created an administrative backlog exceeding 100,000 cases, resulting in severe and indefinite delays in the scheduling of interviews and the issuance of formal permits. These delays are systemic and entirely beyond Ms Mercy Hasweld Phungu's control.

3. GOVERNING LEGAL FRAMEWORK AND BINDING JURISPRUDENCE

The legal status of an individual who has evinced an intention to apply for asylum is unequivocally settled in South African law.

3.1. Statutory Protections under the Refugees Act

Section 21 of the Refugees Act provides the foundational procedure and protections for asylum applicants. It reads, in part:

> **Section 21(2):** The Refugee Reception Officer concerned—

> (a) Must accept the application form from the applicant;

> (b) Must see to it that the application form is properly completed, and, where necessary, must assist the applicant in this regard.

> **Section 21(4):** Notwithstanding any law to the contrary, no proceedings may be instituted or continued against any person in respect of his or her unlawful entry into or presence within the Republic if—

> (a) Such person has applied for asylum in terms of subsection (1), until a decision has been made on the application and, where applicable, such person has had an opportunity to exhaust his or her rights of review or appeal

> [24] The Refugees Act distinguishes between asylum seekers and refugees. An asylum seeker is someone who has arrived in South Africa and applied for asylum... A refugee is someone who has been granted asylum. The Refugees Act protects both groups...

> [26] **Once asylum seekers have entered South Africa, they must apply for asylum at a Refugee Reception Office. The Refugee Reception Officer must issue an asylum seeker permit to the applicant pending the outcome of her application for asylum.**

> [27] ...If the application for asylum succeeds, the applicant becomes entitled to all the rights of refugees provided for in sections 27 to 34. These include the rights to live and work in South Africa...

3.2. The Trigger for Legal Protection: An *Intention* to Apply**

Protection is not contingent on possessing a permit, but is triggered by the mere expression of an intention to seek asylum.

In ***Ashebo v Minister of Home Affairs (CCT/25022, decided 12 June 2023)***, the Constitutional Court provided a definitive summary of the law:

> **36.2** The Refugees Act is triggered by an intimation of a desire to apply for asylum by an illegal foreigner, not by a formal application being submitted.

> **36.3** An illegal foreigner in detention under section 34 is entitled to be released from detention at once when an intimation to apply for asylum is expressed.

This confirms the long-standing principle from ***Bula v Minister of Home Affairs (SAC Case no: 589/11)***, where the Supreme Court of Appeal held:

> [80] It follows ineluctably that once an intention to apply for asylum is evinced the protective provisions of the Act and the associated regulations come into play and the asylum seeker is entitled as of right to be set free subject to the provisions of the Act.

3.2. The Absolute Nature of Non-Refoulement and Protection from Deportation

The prohibition against deporting an asylum seeker before their claim is finalised is absolute. In ***Ashebo***, the Constitutional Court, affirming its previous judgments in ***Ruta*** and ***Abore***, explained the 'shield of non-refoulement':

> [31] ...the 1951 Convention protects both what it calls 'de facto refugees' (those who have not yet had their refugee status confirmed under domestic law), or asylum seekers, and 'de jure refugees'... The protection applies as long as the claim to refugee status has not been finally rejected after a proper procedure. This means that the right to seek asylum should be made available to every illegal foreigner who evinces an intention to apply for asylum, and a proper determination procedure should be embarked upon and completed. The 'shield of non-refoulement' may only be lifted after that process has been completed.

This principle is enforced by explicit court interdicts. In ***Scalabrini Centre of Cape Town and Another v Minister of Home Affairs and Others (8486/2024)***, the Western Cape High Court declared on 13 September 2024:

> "The Respondents are interdicted from initiating any process to deport any foreign national present in the Republic in the event that such foreign national has indicated an intention to make an application for asylum – in terms of section 21(1)(b) of the Refugees Act 130 of 1998."

3.3. Irrelevance of Delay in Applying

Any delay in making an application is not a bar to seeking asylum. This was settled in ***Ruta v Minister of Home Affairs (CCT02/18) [2018] ZACC 52*** and confirmed in ***Desta Abore v Minister of Home Affairs and Another (CCT115/21)***. In *Ruta*, the Constitutional Court held:

> **[56]** What it does not mean is that delay in seeking refuge is irrelevant. On the contrary, it is highly relevant. It is a crucial factor in determining credibility and authenticity... At no stage however does delay function as an absolute disqualification from initiating the asylum application process.

The judgment in *Abore* reiterated this, with Tshiqi J finding that delay is "only relevant to determine whether someone is a genuine refugee" and "should at no stage function as an absolute disqualification from initiating the asylum application process."

3.4. Status During Detention and the Supremacy of the Refugees Act

Even if an individual is detained as an "illegal foreigner" under the Immigration Act, the moment they express an intention to seek asylum, the Refugees Act becomes the prevailing statute.

In ***Shanko Abraham v Minister of Home Affairs (A5053/2021)***, the High Court affirmed the principle from *Ruta* that an illegal foreigner who delayed was not barred from applying and was immune from deportation. Critically, as noted by the Constitutional Court in *Ashebo*, the Full Court that later heard *Shanko* went further, holding that "an illegal foreigner is entitled to be released from detention under section 34 of the Immigration Act once She expresses a wish to apply for asylum."

In ***Ruta***, the Constitutional Court explained this interplay:

> [32] Though an asylum seeker who is in the country unlawfully is an 'illegal foreigner' under the Immigration Act, and liable to deportation, the specific provisions of the Refugees Act intercede to provide imperatively that, notwithstanding that status, his or her claim to asylum must first be processed under the Refugees Act.

3.5. Administrative Failures by the State Cannot Prejudice the Applicant

An applicant cannot be penalised for the DHA's administrative failures, such as losing records or having dysfunctional IT systems. The case of ***Maow v Minister of Home Affairs and Others (13 January 2025)*** is definitive on this point:

Burden on the State: The magistrate emphasized that the absence of **Mr. Maow's** application in the Department's electronic system does not necessarily mean She did not apply. The burden is on the Department of Home Affairs to ensure accurate and reliable record-keeping.

No Fault of the Applicant: Asylum seekers cannot be punished for the DHA's administrative shortcomings. The state's obligation to process applications includes maintaining accurate records.

The ruling reinforces that courts will prioritise the substance of an application over technicalities like digital registration.

3.6. Unconstitutionality of Technical Barriers to Asylum

The courts have struck down various attempts to bar asylum applications on technical grounds.

• In ***Scalabrini Centre v Minister of Home Affairs (CCT 51/23, "Abandoned Asylum")***, the Constitutional Court declared subsections 22(12) and 22(13) of the Refugees Act unconstitutional. These provisions deemed

an application abandoned for failure to renew a visa. The Court found them to be irrational, arbitrary, and a violation of the principle of non-refoulement, as they prevented a merits-based decision on a claim.

- In ***Scalabrini Centre v Minister of Home Affairs (8684/2024, 15 May 2025)***, the High Court struck down the "disbarment regime" that blocked applications from those who entered without a visa or failed to report within five days, holding these exclusions to be unconstitutional. A migrant cannot be summarily barred for bureaucratic failings.

3.7. Socio-Economic Rights: The Right to Work and Dignity

To prevent destitution during long administrative delays, the right to work is protected. In ***Watchenuka and Another v Minister of Home Affairs***, the court found the prohibition on work or study for asylum seekers to be unconstitutional. This was reinforced in ***Somali Association of South Africa v Home Affairs (Case 48/2014)***, where the SCA found "no blanket prohibition against self-employment," thus protecting the right to trade and apply for licences.

4. LEGAL STATUS OF Ms Mercy Hasweld Phungu

In light of the foregoing extensive and settled legal framework:

- **Ms Mercy Hasweld Phungu has formally expressed her intention to seek asylum in accordance with the DHA's prescribed procedures.**
- She action has triggered the full and immediate protection of the Refugees Act. She is therefore lawfully present in the Republic of South Africa until her application is finally determined.

- He is absolutely protected by Section 21(4) of the Refugees Act and the binding principle of non-refoulement from arrest, detention, prosecution, or deportation relating to her immigration status.
- This protection is reinforced by direct High Court interdicts prohibiting such actions.
- He will have in her possession a copy of her Declaration of Intention to Apply for Asylum, proof of its submission to the DHA, and a copy of this explanatory letter.

5. CONCLUSION AND REQUEST

We trust this detailed exposition of the current law is unambiguous. We respectfully request that you recognise Ms Mercy Hasweld Phungu's protected legal status and assist her where necessary. Any action contrary to the clear principles and court orders cited herein would be unlawful and subject to legal challenge.

Should you require any further clarification, please do not hesitate to contact our offices.

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Kind Regards,

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